

Smt. Sumitra Verma v. Madhyanchal Vidyut Vitran Nigam Ltd., Lucknow & Ors.

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 20 September 2023 (final order on an order-sheet running from 30.3.2022) · 2023:AHC-LKO:60539-DB · WRIT - C No. - 13152 of 2020 · **Writ petition disposed of. The Division Bench directed that if the petitioner submits, within two weeks, the ownership documents required under Clause 4.4 of the U.P. Electricity Supply Code, 2005 or an indemnity bond as per Annexure 4.2 of that Code before respondent no. 2 (the Executive Engineer, Madhyanchal Vidyut Vitran Nigam Ltd.), the said respondent shall proceed to consider her application for an electricity connection within two weeks thereafter.**

Source file: WRIC(L)_13152_2020.pdf

HEADNOTE

The petitioner, whose application for a domestic electricity connection had not been acted upon, filed a writ petition which remained on the order-sheet from 30 March 2022 and was finally disposed of on 20 September 2023. The Power Corporation's stand was that the petitioner must either file documents establishing ownership of the premises under Clause 4.4 of the U.P. Electricity Supply Code, 2005, or furnish an indemnity bond under Annexure 4.2 of that Code, and that she had produced neither. On the petitioner's undertaking to supply the required documents under Clause 4.4 or Annexure 4.2, the Division Bench (Vivek Chaudhary and Manish Kumar, JJ.) disposed of the petition with a direction that, if such documents are submitted to the Executive Engineer (respondent no. 2) within two weeks, that officer shall consider the connection application within two weeks thereafter. The Court thus did not compel the release of a connection; it relegated the petitioner to completing the statutory prerequisites — proof of ownership under Clause 4.4 or, in the alternative, an Annexure 4.2 indemnity bond — on completion of which the licensee must decide the application within a fixed time.

FACTUAL SUMMARY

Smt. Sumitra Verma applied to the Madhyanchal Vidyut Vitran Nigam Ltd., Lucknow, for an electricity connection which was not provided, and filed Writ - C No. 13152 of 2020 before the Lucknow Bench of the Allahabad High Court. The petition remained on the order-sheet from 30 March 2022, passing through several Division Benches and two connected civil miscellaneous applications (C.M.A. Nos. 8 and 9 of 2023), before final hearing. At the hearing on 20 September 2023, counsel for the Power Corporation submitted that the petitioner could either file documents establishing her ownership of the premises as required by Clause 4.4 of the U.P. Electricity Supply Code, 2005 or submit an indemnity bond as per Annexure 4.2 of that Code, and that she had furnished neither. Counsel for the petitioner undertook that she would provide the required documents under Clause 4.4 or Annexure 4.2. On that undertaking the Division Bench disposed of the writ petition with a direction that, if the documents are submitted to respondent no. 2, the Executive Engineer, within two weeks, that officer shall consider and proceed on the connection application within a further two weeks. The order bears Neutral Citation 2023:AHC-LKO:60539-DB.

REUSABLE CONSTRUCTIONS

1. An applicant for a new electricity connection who cannot produce documents of ownership of the premises under Clause 4.4 of the U.P. Electricity Supply Code, 2005 may, in the alternative, furnish an indemnity bond under Annexure 4.2 of the Code; the two are alternative routes to a connection. ¶¶ 3
2. Where an applicant undertakes to complete the Clause 4.4 / Annexure 4.2 formalities, a writ complaining of inaction may be disposed of by directing that, on the documents being submitted within a fixed time, the licensee decide the connection application within a fixed time thereafter — leaving the merits of entitlement to the licensee.

¶¶ 5, ¶ 6

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Ownership documents under Clause 4.4 as a route to a new connection

RATIO

QUESTION

What must an applicant for a new electricity connection furnish where the licensee requires proof of ownership of the premises?

HOLDING

The applicant must file documents with regard to her ownership of the premises as required by Clause 4.4 of the U.P. Electricity Supply Code, 2005; her application had not been processed because she had produced neither the ownership documents under Clause 4.4 nor an indemnity bond under Annexure 4.2. On her undertaking to furnish the Clause 4.4 documents (or the Annexure 4.2 bond), the Court directed the licensee to consider the application. ¶ 3, ¶ 4

EVIDENCE “either the petitioner may file documents with regard to her ownership as per Clause 4.4 of U.P. Electricity Supply Code or submit an indemnity bond as per Annexure 4.2 of the said Code. The petitioner has not provided any of such documents.” ¶ 3

FLAG Order-sheet source with a final paragraph-numbered order (¶¶ 1-6) dated 20.9.2023; pins are the numbered paragraphs of that final order. The matter passed through several Lucknow-Bench Division Benches before final disposal; coram is the bench that decided it.

HOLDING-UNIT · UP-2005::Annexure 4.2

RATIO

Indemnity bond under Annexure 4.2 as the alternative route, and the licensee's duty to decide within a fixed time

QUESTION

Where the applicant cannot produce ownership documents under Clause 4.4, what is the alternative, and what is the licensee bound to do once the applicant furnishes the required documents?

HOLDING

The applicant may, in the alternative to Clause 4.4 ownership documents, submit an indemnity bond as per Annexure 4.2 of the U.P. Electricity Supply Code, 2005. On the applicant submitting the Clause 4.4 documents or the Annexure 4.2 indemnity bond before the Executive Engineer (respondent no. 2) within two weeks, that officer was directed to proceed and consider the application for a connection within two weeks thereafter, and the writ petition was disposed of on that basis. ¶ 3, ¶ 5, ¶ 6

EVIDENCE “either the petitioner may file documents with regard to her ownership as per Clause 4.4 of U.P. Electricity Supply Code or submit an indemnity bond as per Annexure 4.2 of the said Code. The petitioner has not provided any of such documents.” ¶ 3

EVIDENCE “In case such documents are submitted by petitioner before respondent no.2-Executive Engineer, Madhyanchal Vidyut Vitran Nigam Ltd. within a period of two weeks from today, respondent no.2 shall proceed and consider the application of petitioner for providing election connection within a period of two weeks thereafter.” ¶ 5

FLAG Pins are the numbered paragraphs of the final order dated 20.9.2023. The quote at ¶ 5 reproduces the source verbatim, including its 'election connection' for 'electricity connection'.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An applicant who could not produce ownership documents under Clause 4.4 was held entitled to pursue a connection by furnishing an indemnity bond under Annexure 4.2; on furnishing either, the licensee was directed to consider the application. ¶ 3, ¶ 5

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The writ was disposed of not by compelling a connection but by directing that, on the applicant submitting the Clause 4.4 ownership documents or an Annexure 4.2 indemnity bond within two weeks, the Executive Engineer decide the application within two weeks thereafter. ¶ 5, ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS IN FACT ENTITLED TO THE ELECTRICITY CONNECTION APPLIED FOR

The Court expressed no view on the merits of the petitioner's ownership or entitlement; that question was left to the Executive Engineer to decide on the Clause 4.4 or Annexure 4.2 documents to be furnished. Compare the spine authority holding that a connection cannot be compelled by mandamus until the Annexure 4.2 / Clause 4.4 prerequisites are completed. [SCJ-1505] ¶ 5

RELATED CASES — SEE ALSO

SCJ-1505 — Directly parallel: a connection sought by an occupant cannot be compelled by mandamus unless the prerequisite formalities under Annexures 4.2 and 4.4 of the Supply Code are completed — the premise on which this writ was disposed.

SCJ-2022 — Occupant applying through a deceased owner whose connection was stalled for want of the owner's NOC; the writ was likewise disposed of by directing the department to consider the application.

SCJ-1999 — New domestic connection withheld for want of ownership proof and a co-owner's no-objection during a pending partition suit was neither granted nor refused, but disposed of with a direction to the department to consider it.

SCJ-813 — Connection directed to be released on the applicant furnishing the Annexure 4.2 indemnity bond — the indemnity-bond limb offered to the petitioner here.

SCJ-334 — Holds that disputed title is no ground to refuse a connection, the licensee's remedy being an Annexure 4.2 indemnity bond even from a non-owner — the alternative route recorded in this order.

SCJ-2203 · Smt. Sumitra Verma v. Madhyanchal Vidyut Vitran Nigam Ltd., Lucknow & Ors. · 2023:AHC-LKO:60539-DB · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.